

Maya Devi & 6 Others v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 27 July 2023 · 2023:AHC:150881-DB · Writ - C No. 16176 of 2023 · **Writ disposed; petitioners left to the remedy under Clause 4.6(f).**

HEADNOTE

Where applicants for domestic connections at a plotted colony dispute the licensee's estimate after it has been furnished, the writ court will not examine the quantum. Counsel for Paschimanchal Vidyut Vitran Nigam Ltd. invoked Clause 4.6(e)(i) to (iii) of the U.P. Electricity Supply Code, 2005 — 44 plots, an estimated load of 106 kW, and commencement of work only after deposit of the full estimate — and Clause 4.6(f), under which a dispute about the estimate may be referred to the authority one level above the sanctioning authority and thereafter to the Consumer Grievance Redressal Forum. The Division Bench declined to proceed and disposed of the petition, leaving the petitioners to the remedy available in law. It did not decide whether the demand of more than Rs 10 lakh was excessive, whether pole, wiring and installation charges could be levied, or whether an independent spot inspection was required.

FACTUAL SUMMARY

Maya Devi and six others petitioned the Allahabad High Court for domestic electricity connections at Goga Vatika, Khasra No. 40, Village Kathera, Tehsil Dadri, Gautam Budh Nagar. They challenged respondent no. 3's order dated 2 March 2023 demanding more than Rs 10 lakh, and sought connections at charges admissible in law, without pole, wiring and installation charges, and a free spot inspection by an independent authority. Paschimanchal Vidyut Vitran Nigam Ltd. was among the respondents.

On 27 July 2023, after adjournments for instructions, counsel for the Nigam filed instructions dated 26 July 2023. He relied on Clause 4.6(e)(i) to (iii) of the U.P. Electricity Supply Code, 2005: 44 plots, an estimated load of 106 kW, and work only after the full estimate is deposited. A dispute, he said, lies under Clause 4.6(f) with the authority one level above the sanctioning authority and then the Consumer Grievance Redressal Forum. The estimate had already been furnished. The Bench declined to proceed and disposed of the writ, leaving the petitioners to the remedy available in law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6(f)

colony connection estimate — writ declined; dispute left to the authority one level above the sanctioning authority and then the CGRF

QUESTION

Will the writ court examine the quantum of a furnished connection estimate, including pole, wiring and installation charges, when the licensee points to Clause 4.6(f)?

HOLDING

No. The licensee relied on Clause 4.6(e)(i) to (iii): Goga Vatika has 44 plots and an estimated load of 106 kW, and under Clause 4.6(e)(iii) the licensee commences work only after the applicant deposits the full estimate. Clause 4.6(f), as placed before the Court, provides that a dispute about the estimate may be referred to the authority one level higher than the sanctioning authority and, if the applicant is still aggrieved, to the Consumer Grievance Redressal Forum. The estimate having already been furnished, the Court was not inclined to proceed further and disposed of the writ, observing that if the petitioners were still aggrieved they might invoke the remedy available under the law. ¶ 5-9

QUALIFIER

The Court did not direct a representation, fix a timeline, or require a speaking order, and did not hold that the petitioners must pay the demanded sum as a condition of supply.

FLAG Paragraphs 1-9 are of the order dated 27.7.2023 (Neutral Citation No. 2023:AHC:150881-DB). The same PDF contains unnumbered adjournment orders of 12.5.2023 (Suneet Kumar and Rajendra Kumar-IV, JJ.), 11.7.2023 and 24.7.2023. The Court did not quote Clause 4.6. Counsel's statement that the estimate was furnished 'as per the mandate

of this Court' is not matched by any direction in the orders in this PDF. The 11.7.2023 order spells the Nigam 'Vitaran'; the disposing order uses 'Vitran'.

PRINCIPLE TAGS

relegate-to-statutory-remedy A challenge to the quantum of a connection estimate already furnished, including pole, wiring and installation charges, was not examined in writ. The petition was disposed of, leaving the petitioners to the remedy available in law, which counsel had identified as Clause 4.6(f). ¶ 6-9

cgrf-alternative-statutory-remedy Counsel invoked Clause 4.6(f): an estimate dispute goes first to the authority one level above the sanctioning authority and, if the applicant remains aggrieved, to the Consumer Grievance Redressal Forum. The Court left the petitioners to that remedy without itself referring the dispute or deciding the estimate. ¶ 6-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ORDER DATED 02.03.2023 DEMANDING MORE THAN RS 10 LAKH WAS EXCESSIVE OR CONTRARY TO THE CHARGES ADMISSIBLE FOR A DOMESTIC CONNECTION

Left to the remedy under Clause 4.6(f). The writ did not quash the demand or direct a connection at a lower charge. ¶ 2, 8-9

NOT DECIDED — WHETHER POLE, WIRING AND OTHER INSTALLATION CHARGES COULD BE IMPOSED ON THE PETITIONERS

Raised in the prayer for mandamus. Not examined. ¶ 2

NOT DECIDED — WHETHER A FREE SPOT INSPECTION OR SURVEY OF GOGA VATIKA BY AN INDEPENDENT AUTHORITY SHOULD BE DIRECTED

Sought as a separate mandamus. Not ordered. ¶ 2

NOT DECIDED — WHETHER CLAUSE 4.6(E)(III) TREATS THESE 44 PLOTS AS ONE APPLICANT WHO MUST DEPOSIT THE FULL 106 KW ESTIMATE BEFORE WORK BEGINS

Recorded as the licensee's instructions. The Court did not construe sub-clauses (i) to (iii) or affirm the estimate. ¶ 5